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01.10 INTRODUCTION

The Community Long Term Care Mechanical Ventilator Dependent Waiver assists persons who are dependent upon life sustaining or supporting mechanical ventilation at least six (6) hours per day. This program assists participants to remain at home as long as possible and avoid extended hospitalization.

This policy contains information specific to the Ventilator Dependent waiver. Otherwise, policies and procedures outlined in the CLTC Community Choices Policy and Procedure Manual are followed.

Ventilator Dependent cases will be assessed by CLTC Nurse Consultants. Case Management will be provided by enrolled Case Management Provider entities.

01.20 POLICIES

01.21 Intake

The following criteria must be met in order for a referral to be considered appropriate:

1. Applicant must be currently located in South Carolina or intend to locate within the area;
2. Applicant must be 21 years of age or older or turning 21 within 3 months of the application,
3. Applicant must have one functional dependency; and,
4. Applicant must be dependent upon life sustaining mechanical ventilation at least 6 hours per day.

01.22 Assessment

The use of phone assessment is not an option for this population. All assessments must be completed by face to face visit.

01.23 Medical Eligibility Criteria

The South Carolina Level of Care Criteria for Medicaid-sponsored Long Term Care Services will be used for a ventilator dependent participant. The participant must meet intermediate or skilled level of care **and** be dependent on life sustaining or supporting mechanical ventilation at least 6 hours per day.

01.24 Service Package Approval

The Participant's initial service package must be approved by the Central Office Designee prior to service authorization. The assigned Case Manager will create the initial prior approval requests in Phoenix and send email notification to the Central Office Designee requesting review of the requests. The email notification should include the Participant's CLTC number but should not contain any Protected Health Information.

Subsequent prior approval requests will be reviewed and approved or denied by the Area Office state approvers. Any subsequent requests exceeding the limits which may be approved by the Area Office Approvals will be sent to the Central Office Designee.

01.25 Service Authorization

Waiver services are provided by contracted Medicaid providers to an eligible participant and are authorized following procedures established in the Community Choices waiver. The services available in this waiver include:

- Case Management
- Attendant Care Service
- Personal Care I
- Personal Care II
- Home Delivered Meals
- Medicaid Nursing Services
- In-Home Respite Care
- Institutional Respite Care
- Environmental Modifications
- Enhanced Environmental Modifications
- Ramp
- Bath Safety Equipment
- Pest Control
- Enhanced Pest Control
- Specialized Medical Equipment
- Specialized Medical Supplies
- Personal Emergency Response System
- Nutritional Supplements

Mechanical Ventilator Dependent Waiver Participants are entitled to two (2) additional prescription drugs each month.

NOTE: The following services are not available in this waiver: Adult Day Health Care, Adult Day Health Care Transportation, Respite in the Residential Care Facility, Companion (Agency or Individual), Telemonitoring, Adult Care Home and Nursing Home Transition.

Ventilator dependent participants require care which is considered skilled. Skilled procedures, including but not limited to, tracheostomy care, suctioning, and all ventilator care techniques such as making routine ventilator checks, adding water to the humidifier, changing and cleaning the tubing are not to be performed by the Personal Care I/II. A trained individual must be present in the home at all times while the Personal Care I/II is present **unless** the participant is independent with all skilled care/ procedures. Shortness of breath, the need for suctioning or ventilator failure may occur at any time and can be life threatening and must be dealt with promptly. Personal Care I/II is not responsible for these procedures.

This does not preclude the authorization of Attendant or Personal Care services. Bathing, dressing, linen changes, light housekeeping, shopping, etc. are still necessary procedures and can relieve the family. **Nurse Consultants and Case Managers** should counsel the family in the above cases to assure that they are aware of the Attendant or Personal Care duties, responsibilities, and limitations.

01.25.10 Attendants Providing Skilled Service Activities

The waiver service definition for “Attendant” allows a participant or his/her designee to self-direct "skilled service activities" performed by the Attendant with approval from the participant’s physician. These activities are considered "Health maintenance activities" which could be performed by the participant if the individual were physically and mentally capable.

With Physician approval, Attendants may provide skilled services which are considered health maintenance activities.

When skilled services are being requested to be completed by the Attendant, the following procedure will be followed:

- **For new Attendant referrals**, the **Case Manager** will create a referral to UAP for Attendant Care including a comment indicating “Participant/ representative has requested a skilled service to be provided.”
- **For existing referrals**, already in process with UAP, where a skilled service need has been identified, the **Case Manager** will note in the comment section on the referral “Participant/ representative has requested a skilled service to be provided.”
 - The **Case Manager** will email UAP to notify them of the request. UAP does not receive notifications through Phoenix when a referral is edited.
- **UAP** will send the “MEDICAID HOME & COMMUNITY BASED WAIVERS PHYSICIAN STATEMENT FOR PARTICIPANT DIRECTED ATTENDANT CARE” and a copy of the legislation to the assigned Case Manager by email.

- The **Case Manager** will provide the form and a copy of the legislation to the Participant or Attendant's Employer of Record.
- The **Participant or Employer of Record** will submit the Physician's Statement to the Participant's physician requesting physician's approval/ signature.
- Once the signed Physician's Statement has been received, the **Case Manager** will scan the form into Phoenix scans under the "Attendant" scan tag.
- The **Case Manager** will email UAP to notify them the form has been returned and scanned into Phoenix.
- **UAP** will complete the Attendant match visit once this notification is received.

The following list of services are examples of activities which *may* be appropriate for the Attendant to perform. This list is not all inclusive.

Tracheostomy care

Ventilator Care - taking on and off the vent

Suctioning- tracheostomy/ oral

Finger stick blood glucose monitoring

Wound care

Enteral feedings (PEG or Nasogastric)

Bowel program

Catheter Care

Ostomy Care

Any other skilled service requested by the participant/Employer of Record or physician requires Central Office approval.

NOTE: If the participant changes physicians and the physician who signed the Physician Statement is no longer involved in the participant's care, a new Physician's Statement is required. The Attendant may continue to provide the approved skilled services while a new Physician's Statement is obtained.

If the service is directed by a designee instead of the participant and the designee is no longer able to direct the skilled service activities performed by the Attendant, a new physician statement is required. If the designee who is directing the activities is also the Employer of Record/ Representative, a new Attendant Request and match visit is also required.

01.25.20 Medicaid Nursing Services

Authorization of Medicaid Nursing Services ~~authorization~~ does not require an initial evaluation visit by the provider. To authorize, the **Case Manager** will complete the following activities:

- contacts the participant's physician concerning the participant needs, availability of skilled nursing services, and projected service schedule, including amount, frequency and anticipated duration of services.
- sends the CLTC PDN Physician Order for private duty nursing to the Physician. A signed order must be obtained before services may begin.
- obtains Provider Choices from the Participant or Primary Contact in writing utilizing the Service Provider Report from Phoenix or verbally. When obtained verbally, the choices must be documented in the narrative in the order of preference.
- creates a referral to the provider of choice.
- contacts the provider who accepts the referral to negotiate the schedule and start date.
- issues the Service Provision Form, DHHS Form 175.

Note: The hours per week are indicated on the Service Provision Form. The service is not day specific.

- The **Case Manager and provider** should negotiate an effective solution to any differences that may arise between the projected and the final service schedules.
- The **provider** obtains MD orders for participant's care.

- The provider must send a treatment plan to CLTC after the first in-home nursing visit.

01.25.30 In-Home Respite

In-home respite is designed to provide temporary relief for a primary caregiver and maintain the participant at home to avoid institutionalization. In-home respite services may be provided for a period not to exceed fourteen days per state fiscal year (July 1 - June 30). In-home respite services must be provided by an RN or LPN. CLTC is required to obtain a Physician Order for the service. All other waiver services must be discontinued during the in-home respite period. The provider is responsible for securing skilled nursing orders from the physician. The provider must send a treatment plan to CLTC after the first in-home respite nursing visit.

Note: The participant may receive both fourteen days of In-Home Respite and fourteen days of Institutional Respite in the same fiscal year.

The following procedure will be followed when a request is made for In-Home Respite for a participant in the Mechanical Ventilator Dependent Waiver.

- The **Case Manager** discusses the in home respite request with the Area Administrator or area office designee.
- The **Case Manager** submits a prior approval request in the Service Plan in Phoenix.
- The **Case Manager** documents the request and outcome of the Area Administrator discussion in the narrative.
- The **Area Administrator** reviews the request.

☐ If the Area Administrator feels the request is justified, the **Area Administrator**

- enters a comment stating the approval in the justification column of the prior approval request and
- directs the assigned Case Manager (utilizing the prior approval comment field) to send notification to the Central Office Designee via email that the request is available for review in the prior approval section.

Note: The email to the Central Office designee is to include the participant's CLTC # in the message but must not include any

Protected Health Information.

☐ If the Area Administrator feels the request is not justified or the participant has already exceeded the 14 allowable respite days for the year, the **Area Administrator**

- enters “0” in the review column,
- enters a comment in the justification field, and
- clicks save.

Note: The assigned Case Manager is notified of the denial via Phoenix.

- For requests sent to Central Office, the **Central Office designee** reviews the request and completes the prior approval section in Phoenix.

- The assigned **Case Manager** provides the participant/ primary contact with a Service Provider Report for In-Home Respite and obtains the participant’s/ primary contact’s choice of providers in the order of preference.

- The assigned **Case Manager** creates a referral for in-home respite to send to the chosen providers in the order of preference.

- Once a provider has accepted the referral, the assigned **Case Manager** creates a Service Provision Form for the approved number of units. One unit equals a twenty four hour period. The unit of service will be a patient day which is defined as a twenty-four (24) hour period, including the day of admission to respite and excluding the day of discharge.

- The **In-Home Respite Provider** is responsible for obtaining Physician Orders for nursing care to be provided during the respite period.

- All other in-home services, such as PCl, PCII, attendant, RN and LPN, will not be provided during the respite period. The assigned CLTC worker notifies all active in-home care providers, by phone call or Phoenix conversation, to place these services on hold during the respite period. The authorizations may remain active but in-home care providers are not to provide services during the respite period.

NOTE: Refer to the MECHANICAL VENTILATOR DEPENDENT WAIVER SCOPE OF SERVICES FOR IN-HOME RESPITE located in Phoenix HELP for additional information.

01.25.40 Specialized Medical Equipment and Supplies

Specialized medical equipment and supplies, to include devices, controls, or appliances, specified in the service plan, will enable recipients to perform activities of daily living, or to perceive, control, or communicate with the environment in which they live. A CLTC Physician's Order is not required for this service.

Durable medical equipment (DME) and/or supplies may be authorized if the equipment or supplies cannot be reimbursed under Medicare, Medicaid State Plan, or third party insurance and the provider is a Medicaid enrolled DME provider. The Case Manager must check other sources of payment prior to authorizing this waiver service.

Provider choice must be obtained and referral process completed in Phoenix. Upon acceptance of the referral, the DME provider should be contacted prior to authorizing services.

The authorization should include the name of the item, the number of units per month, price per unit, and total price per month. A service authorization must be completed in Phoenix. This service must be included in the Service Plan, but a copy of the plan should not be sent to the provider.

Note: The participant must have the problem "Participant is dependent on Mechanical Ventilation" and the intervention "will authorize specialized medical equipment/ supplies" included in the Service Plan in order to make a referral for this service.

Approval requests for specialized medical supplies and/ or medical equipment, not covered by the participant's insurance (including Medicare and Medicaid), are made to the Central Office Designee. If the participant has no other insurance coverage, the assigned **Case Manager** does the following:

- ☐ obtains a physician's order for the requested equipment or supplies.
- ☐ obtains the participant's/ primary contact's choice of provider(s) in order of preference.
- ☐ contacts the provider of choice to obtain a rate/price for the specified medical supplies or medical equipment.
- ☐ makes the request, including justification, specific supplies/equipment being requested and cost, in the Service Plan Prior Approval section in Phoenix and sends an email to the Central Office Designee to review the request.

Once the request has been reviewed, the **Central Office Designee** approves or denies the request in the prior approval section and notifies the Case Manager of the decision via email.

The **Case Manager** creates a referral which is sent to the provider(s) of choice in the order of preference.

☐ **For medical supplies,**

- (1) Click "Waiver Support" on the Participant's carousel
- (2) Click "New Referral"
- (3) Choose "Specialized Medical Supplies" from the drop down box
- (4) Click "Next"
- (5) Select chosen providers in order of preference by clicking the "+" sign beside provider name.
- (6) Click "Next"
- (7) Enter referral details
 - (a) Confirm units are correct.
 - (b) Verify Frequency
 - (c) Enter a description of the supplies and quantity in the "Notes" field
 - (d) Enter Start Date
 - (e) Enter End Date (if appropriate)(The referral does not need an end date unless the medical supplies are only needed for a known length of time. For ongoing needs for an indefinite time period, the end date will remain open.)
- (8) Click "create referral"
- (9) Click "start referral process"

Note: The assigned **Case Manager** will monitor for appropriate service delivery and for continued need for the supplies during participant contacts, monthly, quarterly and upon re-evaluation.

☐ **For medical equipment,**

- (1) Click "Waiver Supports"
- (2) Click "New Referral"
- (3) Select providers in order of preference by clicking the green + sign by the provider's name.
- (4) Click "next"
- (5) Enter the details for the referral
 - (a) Verify # of units displayed is "1".
 - (b) Verify frequency is "authorization"
 - (c) Enter a description of the equipment in the "Notes" field
 - (d) Enter "start date"
 - (e) Enter "end date" 30 days from the start date
- (6) Click "create referral"
- (7) Click "Start referral process"

Once the provider accepts the referral, the assigned Case Manager will receive a dashboard notification. The assigned **Case Manager** creates an authorization.

For medical supplies,

- 1) Click “Waiver Supports”
- 2) Click “Active Referrals”
- 3) Click on the referral
- 4) Click “Approve Provider” to accept the Provider
- 5) In “Notes” enter a description of the supplies and the frequency of delivery
- 6) Enter the dollar amount obtained from Provider in the “Rate” box
- 7) Click “Create Authorization”
- 8) Click “Send to Provider”

For medical equipment,

- 1) Click “Waiver Supports”
- 2) Click “Active Referrals”
- 3) Click on the referral
- 4) Click “Approve Provider” to accept the Provider
- 5) Enter a description of the equipment in the “Notes” field
- 6) Enter the dollar amount obtained from Provider in the “Rate” box
- 7) Click “Create Authorization”
- 8) Click “Send to Provider”

Note: If you enter a start and end date, you will also need to enter a termination reason in order to create the authorization. For example, the termination reason may be “One time authorization for equipment.”

01.25.50 Two (2) Additional Prescription Drugs

The two (2) additional prescription drugs do not require a Service Provision Form. This service should be explained to the participant by the **Nurse Consultant and Case Manager**.

For a participant entering the waiver who is a category of Medicaid other than MAO (Category 15), a statement should be added to the CLTC Notification Form explaining that the participant is eligible to receive two (2) additional prescription drugs through Medicaid. The participant can present this letter to the pharmacy for the additional prescriptions until the Medicaid system reflects the participant’s current benefits.

Sample Statement

Effective (waiver date) the above participant was enrolled in the CLTC waiver and is entitled to two (2) additional prescription drugs per month above the current limit.

01.25.60 PERS

The policy utilized in the Community Choices waiver, does not apply to this waiver. The participant does not have to be alone 6 or more hours 3 or more days a week.

01.26 Termination

All termination codes from the Community Choices Policy and Procedure manual apply.

Note: If a participant continues to meet skilled or intermediate level of care but is no longer ventilator dependent, the participant must be terminated from the ventilator dependent waiver and transferred to the Community Choices waiver without regard to the processing list.